

**Notice under section 11 of the Arbitration and
Conciliation Act 1996**

To
Builders India Private Ltd.
7A, Camac Street Calcutta 700 016

Dear Sirs

Re: Arbitration of the disputes arising out of Contract No. 3
entered with us.

You had entered into a Contract No. 3 with us undertaking to construct certain flats and guest houses on terms and conditions contained in said contract.

You have failed to complete construction and to make over delivery of possession of houses you had agreed to construct on our behalf.

We have paid you advances and also all your running bills. In spite of this, you are inordinately delaying the matter. Time was of the essence of the contract. You have failed to keep the time schedule.

The few apartments and guest houses that you have constructed and agreed for joint inspection were found to be defective and not suitable for occupation of the staff and they have not yet been made habitable.

In spite of requests you have failed and neglected to complete the work. As a result of your breach of the agreement we have suffered losses and we are still suffering losses every day. Our huge investment has been blocked and we have to pay interest to our Banker for the finance obtained to make payment to you.

Under the clause of the said contract, there is an agreement to refer the disputes to Arbitration of Mr. Rajib Khaitan, Advocate of 6 S.P. Mukherjee Road, Calcutta 700 025.

Under the provisions of section 11 of the Arbitration and Conciliation Act 1996 we hereby give you notice to concur with the appointment of Mr. Rajib Khaitan, Advocate, as the Sole Arbitrator in the matter of the differences and disputes that have arisen between the parties herein and the same be referred for adjudication to him.

The said disputes are, *inter alia*, the following:

- (a) Whether the construction of houses and guest-houses under the said Contract No. 3 have been in accordance with the contract?
- (b) Whether the construction has been completed in accordance with the specification and the terms and conditions of the contract?
- (c) Whether the contractor has delivered completed houses, flats?
- (d) Whether the Eastern India Enterprise has suffered any loss or damages due to non-compliance of the terms and conditions of the contract by Builders India Private Ltd?
- (e) What is the damage and compensation that the employer is entitled to get from the contractor?

Please give your concurrence within 7 days of receipt of this letter.

Yours faithfully

Application for Cancellation of Arbitration Agreement

In the High Court at Calcutta Ordinary Original Civil Jurisdiction

In the matter of Arbitration and Conciliation Act
1996

And

In the matter of an application under section 7 of the
said Act

And

Builders India Private Ltd., a company registered under the Companies Act 1956 and carrying on business in 7A, Camac Street, Calcutta 700 016

Petitioner

And

S.N. Udyog Private Ltd. a company registered under the Companies Act 1956 and carrying on business at 6 S.P. Mukherjee Road, Calcutta 700 025

Respondent